*	*	*
23-A	(4-75)	General Provisions (Construction Contract)
*	*	*

23. In Part 16, 16.001(d) is amended further by inserting after "DMS-14 (7-59) Allotment Decrease (Construction)" the following list of forms to read as follows:

*	*	*
DOE EV-375.	(4-78)	U.S. Department of Energy Isotope Order Blank
GSA-457.	(10-66)	Request for Federal Supply Schedules and Contractors Catalogs
GSA-2084.		Clearance to Acquire Correspondence Filing Cabinets
ITS-999.	(4-78)	Request for Special Priorities Assistance
NRC 313(I).	(12-81)	U.S. Nuclear Regulatory Commission, Application for By-Product License—Industrial
NRC 313(M).	(9-81)	U.S. Nuclear Regulatory Commission, Application for Materials License—Medical
NRC 313R.	(7-77)	U.S. Nuclear Regulatory Commission, Instructions for Preparing Application for By-Product Material License—Use of Sealed Sources in Radiography Form NRC 313R
NRC 374.	(12-81)	U.S. Nuclear Regulatory Commission, Materials License

Appendix E—Progress Payments Based on Costs

24. In Appendix E, the Table of Contents is amended by changing the page numbers for paragraphs E.503-1 through E-5-8 to read as follows:

*	*	*
E.503-1	Uniform Standard Percentages	E-5:2
E.503-2	Indefinite Quantity Contracts-Basic Ordering Agreements.	E-5:2
E.503-3	Administration	E-5:3
E. 504	Formal Advertising and Small Business Restricted Advertising.	E-5:3
E.504-1	Progress Payment Provision in Invitations for Bids.	E-5:3
E.504-2	Small Business Restricted Advertising	E-5:4
E.504-3	Progress Payments Exclusively for Small Business.	E-5:4
E.504-4	Notice to Bidders	E-5:4
E.504-5	Nonresponsive Bids-Uninvited Progress Payment Condition.	E-5:5
E.505	Unusual Progress Payment-Standards-Procedure.	E-5:5
E.506	Accounting System and Controls	E-5:6
E.507	Information Required	E-5:6
E.508 through E.510.	[Reserved]	E-5:6
E.511	Instructions for Progress Payment Clauses.	E-5:7
E.511-1	Contracting Officer	E-5:7
E.511-2	Uniform Standard Percentages-Firms Not Small Business-Paragraphs (a) and (b) of Clause.	E-5:7
E.511-3	Uniform Standard Percentages-Small Business Concerns-Paragraphs (a) and (b) of Clause.	E-5:7
E.511-4	Percentages for Paragraphs (a)(3)(ii) and (a)(4) of Clause-Contracts With Negotiated Profit Rate.	E-5:7
E.511-5	Unusual Percentages	E-5:7
E.511-6	Other Protective Provisions	E-5:7
E.512	Progress Payment Liquidation	E-5:8
E.512-1	Ordinary Method	E-5:8
E.512-2	Alternate Method-Contracts With Negotiated Profit Rate.	E-5:8

Appendix E [Amended]

25. In Appendix E, E.503-1 is amended by revising the first two sentences to read as follows:

E.503-1 Uniform Standard Percentages. The uniform standard progress payment rate is ninety percent (90%) of total costs for firms which are not small business concerns, and ninety-five percent (95%) of total costs for small business concerns. This ninety-five percent (95%) rate applies to all contracts awarded to small business concerns, whether or not awarded pursuant to formal advertising. * * *

26. In Appendix E, E.504-1 is amended by revising to read as follows:

E.504-1 Progress Payment Provision in Invitations for Bids. When progress payments are contemplated, the invitations for bids shall include a notice of availability of progress payments as described in E.504-4. The percentage of total costs to be mentioned in these invitations for bids is ninety-five percent (95%) for small business concerns and ninety percent (90%) for firms which are not small business concerns.

* * * * *

27. In Appendix E, E.504-2 is revised to read as folows:

E.504-2 Small Business Restricted Advertising. The above policy and standards also apply to procurement by "Small Business Restricted Advertising" and for procurement pursuant to E.504-3. When progress payments are contemplated in these cases, provision will be made for progress payment percentage at ninety-five percent (95%) of total costs.

E.511-2 [Amended]

28. In Appendix E, E.511-2 is amended by replacing "eighty-five percent (85%)" to read "ninety percent (90%)".

E.511-3 [Amended]

29. In Appendix E, E.511-3 is amended by substituting "ninety-five percent (95%)" for the words "ninety percent (90%)."

Supplement No. 2—File Maintenance, Closeout, and Disposition

30. In Supplement No. 2, S2.102-1 (ix) is revised to read as follows:

S2.102-1 Contract Award File

* * * * *

(ix) The Contract Security Classification Specification (DD Form 254), and evidence of contractor clearance;

* * * * *

31. In Supplement No. 2, S2.301-2 is revised to read as follows:

S2.301-2 Closed Contracts.

Firm Fixed Price Unilateral Purchase Orders are closed when evidence of physical completion is received by the contracting officer. All other contracts are closed when they are physically—complete and when all administrative actions are taken, including the accomplishment of one of the two Contract Completion Statements, DD Form 1594. However, a completed contract cannot be considered closed while it is in litigation, or an appeal is pending before the NASA Board of Contract Appeals.

32. To correct the 1981 Edition of the NPR change clause dates to read as follow:

NPR paragraph	Change date	
	From	To
7.104-53(a)	March 1981	December 1981
7.901-4	October 1981	December 1981
8.701(c)	December 1981	November 1974
9.203-7(a)	January 1977	November 1977

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DEPARTMENT OF THE INTERIOR

Bureau of Land Management

43 CFR Public Land Order 6333

[CA-7027 WR, CA-7203 WR]

California; Revocation of Executive Order No. 6762 and Public Land Order No. 432

Correction

In FR Doc. 82-24875 beginning on page 39824 in the issue of Friday, September 10, 1982, make the following correction:

On page 39825, first column, insert "September 1, 1982" as the date of signature at the end of the document.

BILLING CODE 1505-01-M

DEPARTMENT OF HEALTH AND HUMAN SERVICES

Social Security Administration

45 CFR Part 205

General Administration—Public Assistance Programs; Disclosure of Information for Public Audits

AGENCY: Social Security Administration, HHS.

ACTION: Final rule.